

		The FAC fails to state a cognizable claim against City and is uncertain. It fails to specify, for each cause of action, which is directed to which defendant(s), and what facts support the claim as to each defendant. Nor does the FAC articulate any cogent claim as to City. To state a cause of action against a public entity, every fact essential to the existence of statutory liability must be pleaded with particularity. (<i>Searcy v. Hemet Unified School Dist.</i> (1986) 177 Cal.App.3d 792, 802.) Plaintiff has failed to meet those requirements in her FAC. In addition, the FAC fails to state facts demonstrating compliance with the Tort Claims Act, which requires that any civil complaint against a public entity for money or damages first be timely presented to and rejected by the pertinent public entity. (<i>Munoz v. State of California</i> (1995) 33 Cal.App.4th 1767, 1776.) Each theory of recovery against the public entity must have been reflected in a timely claim, and the factual circumstances set forth in the claim must correspond with those alleged in the complaint. (<i>Id.</i>) Failure to allege facts demonstrating or excusing compliance with the claim presentation requirement subjects a claim against a public entity to a demurrer for failure to state a cause of action. (<i>State of California v. Superior Court</i> (2004) 32 Cal.4th 1234, 1239.) Here, the FAC does not attempt to assert compliance with these requirements. City's demurrer is therefore SUSTAINED, as to the entire FAC, with 15 days leave to amend. <i>Counsel for City is to give notice of this ruling.</i>
8.	Talbot v. Talbot 26-1547132	A) Demurrer Defendants Gail C. Talbot and Matthew Talbot's ("Defendants" together) unopposed demurrer is OVERRULED. There are numerous issues with this pleading. It is titled as a demurrer yet there is no actual separate demurrer as required under <i>California Rules of Court, Rule 3.1320</i>. The pleading also appears to improperly request the court strike various damages from plaintiffs Lauren Talbot and Paul Hopkins Talbot, III's ("Plaintiffs" together) First Amended Complaint ("FAC") in the body of the pleading. All of these damages were not identified in the notice of the pleading, even if the pleading itself is improper. The function of a demurrer is to test the legal sufficiency of a cause of action, and not to strike damages. (<i>Civ. Proc. Code § 430.10; Venice Town Council, Inc. v. City of Los Angeles</i> (1996) 47 Cal. App. 4th 1547, 1562.) Defendants have not alleged any proper basis for a demurrer. It is also unclear if Defendants are demurring to the original complaint or the FAC as the pleading repeatedly refers to "Complaint, Prayer ¶ 5, p. 6." The FAC, which was served 21-days prior to this motion being filed (ROA 17), does not have any prayer on page 6. The original complaint, which is not the operative pleading in this matter, does contain a prayer on page 6.

As Defendants have not properly pled any grounds for a demurrer or an issue with the FAC which can be demurred to, and as the pleading itself appears to have issue with the original complaint instead of the operative FAC, the demurrer is **OVERRULED**

B) Motion to Strike

Defendants' unopposed motion to strike is **GRANTED**.

The court first notes that Defendants only identified "Complaint, Prayer ¶ 5, p. 6" to be struck in their notice of motion. Again, as noted in the ruling on the demurrer, there is no prayer on page 6 of the FAC. To the extent Defendants request the court strike Prayer ¶ 5 from page 7, the sum identified in the prayer is for \$1,250,000, and not the \$1,450,000 identified in the notice of motion and in the motion itself. However, the court notes elsewhere in the FAC the sum of \$1,450,000 was identified as the amount Plaintiffs were allegedly harmed without an explanation of the difference. (FAC ¶¶ 18, 25.)

Defendants request the court strike the monetary damage request under the cause of action for declaratory relief as it is barred by the statute of limitations. The FAC alleges that after accepting the funds for the purported buy-out of the Property, Gail refused to transfer her interest in the home to Paul unless Paul gave Matthew a 50% share, which Paul did. (FAC ¶¶ 9-10, Ex. B.) The grant deed assigning Matthew interest was signed by Paul and Gail on or about 01/08/20 and filed on or about 03/11/20. (FAC ¶ 14, Exs. B and D.) "Under duress and based on the extortion by defendants," Paul was required to sign the deed. The statute of limitations began to run on 03/11/20. The statute of limitations is three years based on fraud and duress. (*Civ. Proc. Code § 338(d)*.) The limitations period would have run by 03/11/23. The complaint was filed on 02/13/26, which was over 35 months after the limitations period ended.

While the FAC states that up to 11/20/24, Paul believed that if he requested Matthew would transfer his half of the Property back to Paul, however at that time Gail allegedly filed an unspecified action to obtain the balance of the Property. (FAC ¶ 16.) There are no allegations as to why Paul believed Matthew would transfer the Property back to Paul, nor are there any tolling allegations. As Paul was aware of the fraudulent actions when they occurred, it appears from the face of the FAC that the cause of action for declaratory relief based upon the fraud and duress is barred.

Although a court can award monetary relief in a declaratory relief action under appropriate circumstances, where such appropriate circumstances do not exist because there is no actual controversy. (*Cnty. of San Diego v. State of California* (2008) 164 Cal. App. 4th 580, 608.) As the declaratory relief claim as pled is barred by the statute of limitations, there is no actual controversy between the parties.

		The motion is granted as to the prayer for monetary damages on cause of action number two. (<i>Civ. Proc. Code § 436.</i>) Defendants also request the court strike the prayer for punitive damages. Punitive damages are only available if a plaintiff pleads sufficient facts under one of the three prongs of <i>Civ. Code § 3294</i>. The only prong Plaintiffs attempted to allege is the fraud prong. (FAC ¶¶ 7, 16, 22, 31, Prayer No. 2.) "Fraud must be pleaded with specificity rather than with " 'general and conclusory allegations.' " [Citation.] The specificity requirement means a plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were made. . . [Citation.]" (<i>West v. JPMorgan Chase Bank, N.A.</i> (2013) 214 Cal. App. 4th 780, 793.) While Plaintiffs might allege facts which support extortion Plaintiffs' do not allege sufficient facts which support fraud in that action. The motion is granted as to punitive damages. (<i>Civ. Proc. Code § 436.</i>) Plaintiffs are given leave to file an amended complaint within 15 days of written notice of the ruling. <i>Defendants to give notice.</i>
9.	Trujillo v, Hyundai Motor America 25-1511691	(Moot)
10.	Baluch Brothers Development LLC v. Pukini 23-1346229	The motion by Ryan Young as individual and in capacity as Trustee of the Young Family Trust and the Young Ryan Trust for an order granting judgment on the pleadings is DENIED. There is no proof of service showing the motion was served on the plaintiffs. <i>Cal. Rules of Court, rule 3.1300(c)</i> requires a proof of service to be filed at least five court days prior to the hearing. Accordingly, the motion is DENIED. <i>Mr. Young is ordered to give notice.</i>
11.	Hasan v. Hasan 24-1408848	Before the Court is a motion to disqualify Plaintiffs' counsel Fred Padres (Padres) filed by defendants Malik Hasan and Seeme Hasan (Defendants). For the reasons set below, the motion is DENIED. Plaintiffs' request for sanctions is also DENIED. Defendants' original request for judicial notice is DENIED as irrelevant and Defendants' request for judicial notice submitted for the first time with the reply is DENIED as untimely. The court has inherent power "to control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every manner pertaining thereto." (Code Civ. Proc. § 128, subd.(a)(5).) This includes the power to disqualify counsel in appropriate cases. (<i>In re Complex</i>